

25STLC06914 25STLC06914

County: los-angeles

Division: Civil Law and Motion

Department: 25

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Case Number: 25STLC06914 Hearing Date: August 24, 2026 Dept: 25

HEARING DATE: Mon., August 24, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Golden

Kaizer, Inc. v. Alarcon, et al. COMP. FILED: 09-09-25

FAC FILED: 09-12-25

CASE NUMBER: 25STLC06914

NOTICE: OK

PROCEEDINGS: MOTION

FOR ORDER CORRECTING MISNOMER IN PLAINTIFF'S NAME BY INTERLINEATION [CAL. CIV.
PROC. CODE § 473(a)(1)]

MOVING PARTY: Plaintiff

Golden Kaizer, Inc.

RESP. PARTY: None

MOTION TO CORRECT COMPLAINT

(Code Civ. Proc., § 473, subd. (a)(1))

TENTATIVE RULING:

The Court GRANTS

Golden Kaizer, Inc.'s motion. The first

amended complaint and all prior pleadings and proceedings in this action are deemed amended, by interlineation, to state Golden Kaizer's true name as "KAIZER GOLD, INC., a California corporation, doing business as GOLDEN KAIZER INC" wherever the name "GOLDEN KAIZER, INC." appears.

The defaults

entered against Blanca Jewelry, LLC and Blanca Alarcon remain in effect.

Golden

Kaizer is to give notice.

SERVICE:

☒ [X]

Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ [X]

Correct Address (CCP §§ 1013, 1013a) OK

☒ [X]

16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of August 19,

2026 ☐ [] Late ☒ [X] None

REPLY: None filed as

of August 19, 2026 ☐ [] Late ☒ [X]

None

ANALYSIS:

Three

days after filing its initial complaint, Golden Kaizer, Inc. filed its first amended complaint against Blanca Jewelry, LLC and Blanca Alarcon for various causes of action arising from Alarcon's failure to pay for jewelry sold by Golden Kaizer. Golden Kaizer obtained defaults against Blanca Jewelry and Alarcon but has not yet obtained a default judgment. Golden Kaizer now moves for an order correcting a misnomer in its name in the first amended complaint and all prior pleadings and proceedings in this action, by interlineation, from "GOLDEN

KAIZER, INC., a California corporation” to “KAIZER GOLD, INC., a California corporation, doing business as GOLDEN KAIZER INC.”

Code

of Civil Procedure section 473 gives the Court authority to allow a party to amend any pleading or proceeding by correcting a mistake in the name of a party. (Id., § 473, subd. (a)(1);

e.g., *Hawkins v. Pacific Coast Building Products, Inc.* (2004) 124 Cal.App.4th 1497, 1503–1505.)

The

invoice underlying this matter was issued under the business name “Golden Kaizer Inc.” Counsel for Golden Kaizer attests that when preparing the default judgment papers, they confirmed Golden Kaizer’s true name of record with the California Secretary of State is “Kaizer Gold, Inc.” Counsel attaches the fictitious business name statement evidencing this fact. The Court finds that Golden Kaizer is Kaizer Gold, Inc.’s fictitious business name and that it represents a single business entity. Thus, the Court GRANTS Golden Kaizer’s motion.

This

change does not constitute a substantive change requiring the amendment to be served on Blanca Jewelry and Alarcon, and does not open the defaults entered against them. (Compare *Pattera v. Hansen* (2021) 64 Cal.App.5th 507, 530 [substantive, material changes include an increase in damages sought, a new or different cause of action based on a different theory, or one that impacts a reasonable defendant’s consideration of whether to contest the claims or to default]; *Engbretson & Co. v. Harrison* (1981) 125 Cal.App.3d 436, 442–443 [an amended pleading containing substantive changes must be served on any defendant who has not yet appeared in the action].) Golden Kaizer has previously served the first amended complaint on Blanca Jewelry and Alarcon; it does not need to re-serve any documents and the defaults remain entered against Blanca Jewelry and Alarcon.

Golden

Kaizer is to give notice.